No. 26-1532

IN THE
UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

DEMOCRACY NORTH CAROLINA, LEAGUE OF WOMEN VOTERS OF NORTH CAROLINA, and NORTH CAROLINA BLACK ALLIANCE,

Plaintiffs-Appellants,

v.

FRANCIS X. DE LUCA, *et al.*,

Defendants-Appellees, and Intervenors-Appellees.

Appeal from the United States District Court for the Middle District of North Carolina
Case No. 1:23-cv-878, The Honorable Thomas D. Schroeder

REPLY BRIEF OF APPELLANTS DEMOCRACY NORTH CAROLINA, LEAGUE OF WOMEN VOTERS OF NORTH CAROLINA, AND NORTH CAROLINA BLACK ALLIANCE

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INTRODUCTION

Defendant-Appellees' ("Defendants") Opposition Brief ("Opp.") never adequately addresses the two errors that decide this appeal. On the undue-burden claim, the district court itself described what SB 747 changed and what makes it unconstitutional: the prior system gave a same-day registrant two verification mailings to validate their ballot, while SB 747 eliminated the second mailing and made a returned first mailing, regardless of the reason, the trigger for automatically removing an already-cast ballot from the count. JA2-3. Defendants do not dispute that. Nor do they dispute that, before their ballot is removed, that voter has already registered, produced the documentation North Carolina uniquely requires of same-day registrants, presented identification, and cast a ballot.

Under the SB 747 scheme, that voter has at best a short window, and often no window at all, to prove their ballot is valid, in contrast to so-called "traditional" ballots that are presumed valid. The district court's adoption of the term "traditional" for earlier registration options creates an inherent class system for voters when the Constitution guarantees that all voters are equal. Defendants' doubling down on the district court's error is fatal.

Defendants' remaining Anderson-Burdick argument follows the same pattern. They collapse the old two-mailer system and SB 747's one-mailer rule into the same generic "mail verification" category, as though the constitutional question

turned on whether North Carolina may use the mail at all. It does not. They recite another charged phrase – election integrity and administration – as though invoking a legitimate interest ends the balancing inquiry. It does not, because the courts must balance how those interests are actually served by the challenged provisions. Similarly, although Defendants attack Plaintiffs' experts and the form of Plaintiffs' proof they leave the central point unchallenged: SB 747 makes one unsuccessful mailing capable of putting an otherwise completed vote on a racetrack to rejection. Anderson-Burdick requires the Court to evaluate the burden as it actually operates, not to dilute it with alternatives that disappeared before the burden arose or with general interests that do not explain this particular rule.

Defendants' Twenty-Sixth Amendment argument is equally flawed. Defendants try to distract this Court from Arlington Heights by conjuring uncertainty about the governing framework (there is none) and by denying that young voters constitute a cognizable class (that is not the test). Opp. 35-43. The Twenty-Sixth Amendment expressly prohibits age discrimination in voting, and Arlington Heights prescribes the structure for evaluating that discrimination, as Defendants' own authorities concede. When they finally reach the heart of the matter, Defendants' explanation of the district court's central error—requiring Mitchell and Womack's discriminatory purpose to be "attributed" to the General Assembly as a whole rather than asking whether that purpose was a motivating

factor in SB 747's enactment—merely compounds that error. Plaintiffs do not ask the Court to automatically impute outside advocates' views to legislators; they rely on evidence that Mitchell and Womack generated and advanced the SDR restriction, out of hostility toward the young and college voters who disproportionately use it. Neither *Brnovich*, legislative good faith, the State Board's later implementation advice, nor Defendants' disparate impact arguments answers that evidence under the correct motivating-factor standard.

Properly framed, Defendants' arguments do not sustain the judgment below. This Court should reverse.

ARGUMENT

I. Defendants Never Address the Burden That Matters: The Threat of Rejecting an Already-Cast SDR Ballot After One Failed Mailing.

Defendants point to registration options that have disappeared before the burden arises, minimize SB 747's new consequences as ordinary "mail verification," discount quantified evidence of voter impact, and invoke general state interests without explaining why they justify this particular one-mailer rule, but they never confront the burden SB 747 actually imposes.

A. Registration options that disappear before the burden arises cannot mitigate that burden.

Defendants continue to rely on an invented category of "traditional registration methods" to justify the burdens placed on same-day registration ("SDR"). Opp. 3-7, 26-28. Going beyond using "traditional" as shorthand, *contra* Opp. 26-27, Defendants effectively commit the error they deny: demoting SDR to second-class status. In Defendants' (and the district court's) conception, same-day registrants are entitled to less protection because they supposedly accepted unique "risks attending SDR" through the "realities of individual choice." Opp. 26-27 (citing JA84-85). But neither North Carolina nor federal law classifies any method of voter registration as "traditional." *See* Plaintiff-Appellants' ("Plaintiffs") Opening Brief ("Br.") 12-13 & n.3. Nor should any voter be deemed second-class when they have provided even more validating information than so-called "traditional" voters. Different registration methods may involve different procedures; that does not justify a different level of constitutional protection. *See* Br. 13.

The evidence offered by Defendants at trial does not support the distinction they ask this Court to draw. Dr. Quinn testified that, before SB 747, "regular registrants were verified by essentially the same process as same-day registrants" because both used a two-mailer system. JA805. And State Board General Counsel Paul Cox testified that what set same-day registrants apart was an additional

requirement to prove residential address using a HAVA document, rather than any lower threshold for registration. JA1196-1198. The district court nevertheless adopted the notion that a same-day registrant's decision not to register earlier was "almost certainly the product of his or her own choice," and relied on what it viewed as the "neglect[]" inherent in that choice to discount the heightened burden imposed on same-day registrants. JA84, JA106. Choice is a red herring. The issue is the burden SB 747 imposes after the voter has exercised that choice and cast a ballot.

Defendants' reliance on witnesses' colloquial use of "regular registrants" does not change the analysis. Opp. 4-6. Their own examples show that, before SB 747, the verification processes for all registrants were substantially aligned. Dr. Quinn testified that "for both types of voters, a two-mailer system" worked "very, very similar across both[,]" JA805, and that State Board administrative data did not distinguish between registration types, which means that the data does not support the distinction the district court adopted and Defendants urge. JA806. Indeed, the shorthand utilized is irrelevant: the State may not attach a heightened burden to one registration method over another and then discount that burden after a voter has chosen an option that the State made available.

Plaintiffs do not dispute that courts should analyze a State's entire election framework when determining the character of a law's burden. *See* Opp. 26-28. But

the purpose of that broad analysis is to identify how a challenged law's burdens function in the election scheme. *See Arizona Libertarian Party v. Hobbs*, 925 F.3d 1085, 1096 (9th Cir. 2019) (Opp. 27); *Luft v. Evers*, 963 F.3d 665, 671 (7th Cir. 2020) (Opp. 24-25). It is this fulsome analysis that makes the timing of SB 747's burden dispositive.

As Defendants point out, "any burden imposed on voters who choose one of the available options cannot be evaluated without also taking into account the other available means." Opp. 28 (citing *Brnovich v. Democratic Nat'l Committee*, 594 U.S. 647, 671 (2021)). But for an option to actually ameliorate a particular burden, it must still be available to the voter to avoid that burden. *Accord Northeast Ohio Coalition for the Homeless v. Husted*, 837 F.3d 612, 632-34 (6th Cir. 2016) (distinguishing an impact "wholly in [voters'] own control" from "ballot rejection on a technicality").[1]

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1 Defendants claim *Husted* was abrogated and involved no cure provision. Opp. 26 n.16. But *Husted*'s organizational standing analysis is what was called into question in *Tennessee Conference of the NAACP v. Lee*, 139 F.4th 557, 562-67 (6th Cir. 2025), not the burden analysis relevant here. Nor does the existence of a cure process make an alternative registration method available after a ballot has been cast, or prevent SB 747 from causing "ballot rejection on a technicality" for eligible North Carolina voters. *See* JA1208-1216.

CONCLUSION

For the foregoing reasons, the Court should reverse the judgment below and remand with instructions to enter judgment for Plaintiffs on their undue burden and Twenty-Sixth Amendment claims, or, at a minimum, to reconsider those claims under the correct legal standards.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I, Jeffrey Loperfido, counsel for Plaintiffs-Appellants and a member of the bar of this Court, certify that the attached reply brief is proportionally spaced, has a typeface of 14 points, and contains 1,334 words as calculated pursuant to Fed. R. App. P. 32(f) and 32(a)(7)(B)(ii).

/s/ Jeffrey Loperfido

Signature Date